

1.

CASE #	CASE NAME	HEARING NAME
CVME2508166	TIM LINCOLN, TRUSTEE OF THE REVOCABLE LIVING TRUST OF CHARLES DUNN VS NICKLAS	MOTION TO APPOINT RECEIVER

Tentative Ruling: Motion is denied. Under Code of Civil Procedure section 564, subdivision (b), the court in which an action or proceeding is pending may appoint a receiver in the listed categories of cases. Plaintiff does not specify which of the categories under 564(b) applies to the motion but appears to be relying on subdivision (b)(1) of section 564 which provides: “In an action ... by a creditor to subject any property or fund to the creditor’s claim ... on the application of the plaintiff ... where it is shown that the property or fund is in danger of being lost, removed, or materially injured.” (Code Civ. Proc., § 564(b)(1).) Section 564(b) also contains a “catch-all” category in which relief for an appointment of receiver may be granted “[i]n all other cases where necessary to preserve the property or rights of any party.” (Code Civ. Proc., § 564(b) (9).) Plaintiff fails to make the showing necessary under either of the categories.

First, section 564(b)(1) does not apply to this case which is not an action brought by a creditor “to subject any property or fund to the creditor’s claim.” (Code Civ. Proc., § 564(b)(1).) This is an action seeking equitable reliefs to quiet title and to declare a deed of trust as void. Also, Plaintiff has not made a sufficient showing that the property, or any future sale proceeds that may result from the sale of the property, are in danger of being lost, removed, or materially injured. There is no evidence presented by Plaintiff that the property is in danger of being lost, remove, or injured by any actions taken by Defendants. Also, there is no evidence put forth by Plaintiff showing that the Property is capable of being sold without Defendants’ cooperation and consent to release the deed of trust to clear title of any encumbrance to be marketable to any potential buyers to allow the sale move forward and Defendants to claim against the proceeds should this case result in a judgment in their favor. Hence, the practical value of appointing a receiver to take custody of sales proceeds at this juncture is unclear. For this reason, the motion lacks merit.

2.

CASE #	CASE NAME	HEARING NAME
CVME2509401	THOMAS VS ALEXANDER	MOTION TO EXPUNGE LIS PENDENS

Tentative Ruling: Motion is Granted. Sanctions awarded to Defendant in the amount of \$960.00. A lis pendens/notice of pendency of action gives constructive notice of a pending lawsuit affecting title to described real property and is recorded in the office of the county recorder where land is located. (See, Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2022), § 9:421.) Anyone who acquires an interest in the described real property (purchaser, mortgagee, etc.) takes that interest subject to any judgment that may be entered in the lawsuit. The practical effect is to cloud the property’s title and prevent its transfer until the litigation is resolved or the lis pendens is expunged or released. (*Malcolm v. Superior Court* (1981) 29 Cal.3d 518, 523; *Bishop Creek Lodge v. Scira* (1996) 46 Cal.App.4th 1721, 1733.) Recordation of a